

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 39
JUDICIAL OFFICER: EDWARD G WEIL
HEARING DATE: 01/13/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 39's email address is: dept39@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 39 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

10:00 AM	CASE NUMBER: N24-0784
CASE NAME: PAUL MATEJCEK VS. CITY OF BRENTWOOD	
HEARING IN RE: VERIFIED PETITION FOR WRIT OF MANDATE PURSUANT TO STIPULATION FILED	
FILED BY:	
<u>*TENTATIVE RULING:*</u>	

Before the Court is Paul Matejcek's petition for Writ of Mandate pursuant to Code of Civil Procedure § 1094.5. By his writ, Petitioner asks the Court to reject the City Manager's twin findings that (1) the use of force was out of policy and (2) termination was the appropriate discipline. (Pet. Opening Brief at 1:20-23.) If, however, the Court finds the use of force was out of policy, Petitioner argues that

termination was still excessive and unwarranted. (*Ibid.*)

Respondent City of Brentwood opposes the writ on the grounds that the evidence supports the City Manager's finding that Petitioner's use of force was out of policy and termination was not an abuse of discretion.

For the following reasons, the writ is **denied**.

Background and Procedural History

Petitioner Paul Matejcek ("Matejcek") was a police officer with the Brentwood Police Department ("the Department" or "BPD") from August of 2017 when he graduated from the police academy until August of 2022 when he was terminated for allegedly violating the Department's Use of Force Policy. (Pet. Opening Brief at 1:25-28; Supplemental Administrative Record ("SAR") at 00001, 000014.)

The incident that led to Matejcek's discharge occurred April 23, 2022, when Matejcek answered a call for service with two other Brentwood police officers, Officer David Franson ("Franson") and Officer Josh Flynn ("Flynn"). (SAR at 000014; Administrative Record ("AR") Vol. I, Ex. 3 at 13.) Franson started in law enforcement as a correctional officer for the San Mateo County Sheriff's Department in 2007 before transferring to patrol as a Deputy Sheriff in 2011. (SAR at 000017.) Franson has been with BPD since June of 2020, primarily working on patrol on the graveyard shift. (*Ibid.*) Flynn joined BPD in 2016, took a nine-month hiatus from the Department in 2021, before returning in March of 2022; he previously worked in law enforcement in Kansas. (SAR at 000013.)

Matejcek, Franson, and Flynn responded to a 5:24 a.m. call for service about screaming coming from a line of prefabricated storage sheds for sale in an outdoor display next to the garden department at the Home Depot at 5631 Lone Tree Way. (SAR at 000011, 000014; AR Vol. I, Ex. 3 at 13.) That location was within Matejcek's beat, so he took the lead as the primary officer on the call. (AR Vol. III, Ex. 23 at 120:10-17.)

As the three officers began to inspect the sheds, they heard one of the shed doors slam and lock shut. (AR Vol I, Ex. 3 at 13, AR Vol. II, Ex. 23 at 124:20-22, SAR at 000014.) They found the shed they believed the subject to be in and, after hearing movement inside, Franson's body worn camera^{[11](#)} footage shows, they knocked loudly on the door, announced themselves as police, and commanded anyone inside the shed to come out. (AR Ex. 2 Franson Body Worn Camera ("BWC") at 0:43-0:50; AR Vol. III, Ex. 23 125:7-10; Vol. I, Ex. 3 at 14.) Matejcek verbally formulated a plan with Franson and Flynn that Matejcek would open the door, while Franson would train less lethal coverage on the doorway with the use of a taser, and Flynn would illuminate the doorway with his flashlight. (AR Vol. III, Ex. 23 125:19-22; Vol. I, Ex. 3 at 14.)

Upon opening the shed door, both Matejcek and Franson recognized the individual stepping through the doorway right away as a woman named Jill Hurley ("Hurley"). (AR Vol. III, Ex. 23 125:23-25; SAR at 000018.)

Matejcek had arrested Hurley on six prior occasions. (AR Vol. III, Ex. 23 at 110:1-3.) Matejcek knew Hurley to be “a transient who was always under the influence of methamphetamine or alcohol, or both.” (*Id.* at 107:20-25.) He knew her to be belligerent and violent and that “she would run away from me any time that I tried to arrest her. And if I did arrest her and tell her that she was going to jail, she would normally fight with us.” (*Id.* at 108:6-13.) According to Matejcek, fighting for Hurley looked like “kicking, pulling, biting, screaming, anything to resist going to jail.” (*Id.* at 108:9-15.)

Matejcek alleges that on one previous occasion when he tried to arrest Hurley, she spit in his direction. (*Id.* at 111:10-16.) However, there is no documented evidence that Hurley previously ever fought with or spat at Matejcek in his nearly five-year career with BPD, according to the subsequent investigation into this incident. (SAR at 000040.)

Franson knew Hurley as someone he had interacted with on five or fewer occasions, but who was known as a drug user who had many contacts with police and had acted violently in the past. (SAR at 000018.)

Flynn, too, had previous contacts with Hurley, although he did not initially recognize her. (SAR at 000014.) He had interacted with her on at least half a dozen occasions for “much of the same, intoxicated in public, yelling, screaming, causing issues for paying customers of various businesses in Brentwood.” (*Ibid.*) Flynn knew her as a methamphetamine user and heavy drinker, with “violent tendencies” that were well known within the Department. (*Ibid.*) He was aware she had spit on officers in the past. (*Ibid.*)

During the subject incident, when Hurley stepped out of the shed, Franson immediately said: “Hey, let me see your hands.” (AR Ex. 2 Franson BWC at 0:49-0:50.) Then Matejcek said “sit down” four times in rapid succession over the course of two seconds. (*Id.* at 0:46-0:52.)

Hurley, who slowly walked out the shed door and to her right in the general direction of Matejcek then replied, somewhat dazedly, “What?” and Matejcek grabbed her by the right arm and quickly repeated “sit down” twice more. (AR Ex. 2 Franson BWC at 0:52-0:55.) When Hurley did not attempt to run away but remained standing, Matejcek said with increased urgency “SIT DOWN!” while pulling her to the ground. (*Id.* at 0:52-0:55.) After placing Hurley in a seated position, he ordered her to put her hands behind her back as he handcuffed her. (*Id.* at 0:56-0:59.)

After being secured on the ground in front of the doorway of the shed, Hurley began talking about how she was grateful someone had heard her screaming because she had been “shot in the nose” by a Mexican man with a big “hawk nose.” (AR Ex. 2 Franson BWC at 1:002:00.) Matejcek briefly questioned her about who shot her, but her responses were largely rambling and incoherent and he abandoned the effort. (*Id.* at 1:50-2:50; AR Vol. III, Ex. 23 128:23-25, 129:5-20.) Matejcek testified at the Administrative Hearing in this case that he noticed some cuts on Hurley’s face, but they were not consistent with being shot by either bird pellets or a bullet. (AR Vol. III, Ex. 23 128:25, 129:1-4; Vol. I, Ex. 7 (Photos of Jill Hurley).)

Although Hurley’s dialog was largely disjointed and incoherent as she rambled about her unknown

assailant, she was outwardly relatively calm for the first six minutes of her interaction with the officers. (AR Ex. 2 Franson BWC at 0:49-6:52.) Suddenly, however, she abruptly snapped and started screaming and accusing the officers of following her. (*Id.* at 6:51-6:58.) Despite this, the officers stood facing Hurley on the ground casually talking to her. (*Id.* at 6:51-8:09.) Matejcek was five to six feet away from Hurley, while he estimated Franson and Flynn were seven to eight feet from her. (AR Vol. III, Ex. 23 at 131:16-20.)

A little over a minute later, Franson turned the audio on his body worn camera off to have an administrative conversation with his colleagues about their next steps. (AR Ex. 2 Franson BWC at 8:09; AR Vol. III, Ex. 23 at 28:11-25, 29:1-16.) The officers continued to appear calm and casual while talking and standing in front of Hurley. (AR Ex. 2 Franson BWC at 8:09-9:08.) Hurley remained handcuffed on the ground for another minute, and she continued to be agitated, becoming “verbally aggressive” and “more vocal and using profane language.” (AR Ex. 2 Franson BWC at 8:09-9:08; AR Vol. III, Ex. 23 at 30:3-19, 134:15-17.) Flynn later told an investigator that he believed Hurley’s agitation stemmed from the officers’ discussion about potentially arresting her. (SAR at 000015.) During that minute, Hurley can be seen but not heard in Franson’s body worn camera video rocking back and forth, apparently talking to the officers. (AR Ex. 2 Franson BWC at 8:09-9:08.)

Flynn later told an investigator, “We were discussing what type of crime we had or whether based on what she was talking about and how she was acting if she fits the [W&I §] 5150 criteria.” (SAR at 000015.) Flynn recalled that Matejcek suggested placing Hurley on a W&I § 5150 hold but Flynn, who is also an EMT and former medical instructor, advised that Hurley did not fit the criteria for such a hold and that they should instead arrest her for Public Intoxication (PC § 647(f)). (*Ibid.*) Flynn went on to explain to the investigator that it is common practice to deactivate audio while discussing the elements of a crime and specific matters of a case to prevent those conversations from being scrutinized in court. (*Ibid.*)

At 9:08 of the body worn camera video, Hurley is seen rocking back as if in preparation for pushing herself to her feet, which she ultimately does. (AR Ex. 2 Franson BWC at 9:07-9:12.) This led Matejcek to conclude that “she’s either going to start running at me or she’s going to run away, or we’re going to have to go and approach her and she’s going to kick at us. Or spit at us....” (AR Vol. III, Ex. 23 at 134:18-25, 135:1-3.) He said he wanted to maximize the distance between his face and Hurley’s face because he knew that she liked to spit and he did not want to be infected by any pathogen she might have. (AR Vol. III, Ex. 23 at 136:9-17.) This was particularly so he said because, although he “took it with a grain of salt,” during previous contacts, she had told officers she was HIV positive. (*Ibid.*)

All Department vehicles are stocked with spit hoods. (AR Vol. II at Ex. 17.) A spit hood is a temporary protective device that is “designed to prevent the wearer from biting and/or transferring or transmitting fluids (saliva and mucous) to others.” (*Id.* at Ex. 16.) Matejcek testified at the Administrative Hearing that he considered putting a spit hood on Hurley but did not have one. (AR Vol. III, Ex. 23 at 143:5-7.) There were three Department vehicles on scene, including Matejcek’s own, during the subject incident, but there is no indication Matejcek asked either of his colleagues for their

vehicle's spit hood. (*Id.* at 124:7-15.)

Flynn recalled that as Hurley attempted to stand, Matejcek and Franson were ordering her to stay seated, with words to the effect of, "Jill, just sit down, just stay seated. You don't need to get up right now." (SAR at 00015.) Before Hurley could get all the way to her feet Matejcek quickly took three long strides toward her, cocked his foot and kicked her on her left torso with the ball of his foot with the intent of pushing her back down to the ground. (AR Ex. 2 Franson BWC at 9:07-9:12; AR Vol. III, Ex. 23 at 135:9-11.) The force of Matejcek's kick launched Hurley into the door of the shed, which she bounced off of and onto the ground in front of the shed. (AR Ex. 2 Franson BWC at 9:07-9:12.)

Both Flynn and Franson were surprised by Matejcek's use of force. (SAR at 000016, 000019.) Both later indicated they felt the force was unreasonable and that there were other more reasonable steps that could have been taken to gain control of Hurley. (SAR at 000016, 000019.) Flynn later said "I didn't see Jill getting up as a major issue. I mean, we didn't want her to stand up, but I didn't feel like [it was an] immediate safety issue." (SAR at 000016.)

Matejcek then helped Hurley to stand and walked her to his patrol car to search her pockets. (AR Ex. 2 Franson BWC at 9:13-13:55.) During much of this time he and the other officers were within arms' reach or closer to Hurley's face. (*Ibid.*)

Flynn later told an investigator that he and Franson trailed behind and shared misgivings about Matejcek's use of force. (SAR at 000016, AR Vol. III, Ex. 23 at 37:5-15.) Franson testified at the Administrative Hearing about the conversation:

[I]t was kind of like, 'This is what I saw,' and him saying, 'Yeah, this is what I saw,' kind of confirming that we saw the same thing, and making a determination between both of us that it seemed excessive.

(AR Vol. III, Ex. 23 at 37:5-15; SAR at 000020.)

Flynn and Franson then offered to take over the call, because, as Flynn put it, "we didn't know what was going on or if something happened that we didn't see or there was another reason for the use of force." (SAR at 000016.) Matejcek declined the offer. (*Ibid.*)

Medical aid was then summoned because of Hurley's claims of being shot in the nose and because of the use of force. (AR Vol. III, Ex. 23 at 34:2-4, 143:19-25, 144:1-3.) Ultimately, Hurley was cleared to go to jail by paramedics. (SAR at 000020.)

Matejcek arrested Hurley for Battery on a Peace Officer (Penal Code section 243(b)) and Public Intoxication (Penal Code 647(f)). (SAR at 000011.)

Earlier that month, all three officers were involved in defensive tactics training wherein they were taught that officers were mandated to report any excessive uses of force by their colleagues. (SAR at 000017.) The curriculum did not include training on kicking. (*Id.* at 000036.)

Once Hurley was placed in a patrol car, Franson and Flynn approached Matejcek and informed him

that they believed the force he used on Hurley was excessive and that they would need to report it to their supervisor. (*Id.* at 000020.) Franson later described Matejcek's demeanor during this conversation as "defensive" and that he was "taking offense" to Franson and Flynn's criticism, contending that Hurley standing up had presented a threat to him. (*Ibid.*) Franson told the investigator: "the way he spoke about it was almost like it was a justifiable use of force, and I did not agree with that. Never saw that and still don't." (*Ibid.*)

When the officers returned to the station, they met with Sergeant Mitchell Alvarez ("Alvarez") to discuss the use of force. (SAR at 000020.) Matejcek recounted the incident to Alvarez with Franson and Flynn present, describing the force he used as a "push" with his foot; neither Franson nor Flynn interjected to claim Matejcek had left out any critical details or downplayed the incident. (AR Vol. III Ex. 23 at 146:16-22; SAR at 0000222-000023.)

Alvarez viewed the body worn camera footage from the incident and was concerned about Matejcek's use of force. (SAR at 000023.) Based on those concerns he contacted Lieutenant Louwerens to notify him of the incident, and Louwerens agreed that the kick was concerning. (*Ibid.*) Alvarez drafted a memo to BPD's then-Chief of Police Thomas Hansen ("Hansen") describing the incident and his concerns. (AR Vol. I Ex. 6 at 000032-000033.) Matejcek was placed on administrative leave and Hansen ordered a full investigation into the matter. (*Ibid.*)

An independent investigation was undertaken by outside attorney Todd Simonson and concluded that the kick constituted excessive force and was unreasonable given the totality of the circumstances. (SAR at 000011; AR Vol. III, Ex. 23 at 81:12-24.) On August 15, 2022, Hansen served Matejcek with a notice of termination. (SAR at 00001-00008.) Hansen subsequently presided over a *Skelly* Hearing in the matter, but he later testified "there was nothing at the conclusion of the meeting that -- that made me reconsider my position to discipline -- or to terminate him." (AR Vol. III Ex. 23 at 85:7-24.) BPD issued a final termination August 31, 2022. (AR Vol. IV at 1116.)

Matejcek appealed his termination and in August of 2023 the parties took part in a two-day evidentiary hearing before a neutral Hearing Officer, Paul Roose. (AR Vol. III at 0732-0983; AR Vol. IV at 0984-1063.) The parties presented opposing experts on the use of force: Matejcek put on Sean McCann, who is a tenured professor in Use of Force, and the City put on Sergeant Richard Nance, the Department's former Defensive Tactics Trainer. (AR Vol. III, Ex. 23 at 172:15-25; AR Vol. IV, Ex. 24 at 238:13-17.)

McCann found that Matejcek's force in kicking Hurley was reasonable because of his fear that she would spit on him. He testified:

[T]he prior contacts, just knowing that she spits, and having been spat upon, you know, officers being spat upon, et cetera, knowing that, in fact, that does happen with the individual, and that Jill Hurley's unpredictable, et cetera, that weighs heavily in the direction of saying, "Well, okay, it's reasonable to use force that's going to present -- prevent Jill getting to her feet and closing the distance," et

cetera, you know. The reach of spittle is greater than the reach of, obviously, somebody's arms when they're handcuffed. And so -- so that -- that was a significant fact.

(AR Vol. III, Ex. 23 at 181:13-23.)

Nance, in contrast, found the use of force was unreasonable:

There were two other officers present. She was handcuffed behind her back. When she stood, she didn't appear to make an overt movement toward any of the officers. And it's just -- it didn't seem that there was an immediacy or an urgency to close distance with her and use a kick...

(AR Vol. IV, Ex. 24 at 252:5-253:1-5.)

Roose ultimately heard testimony from Franson, Matejcek, McCann, Hansen, and Nance.

Hansen testified that he worked at BPD for 28 years, ultimately working his way up to Chief in the last five years; he retired in September of 2022. (AR Vol. III, Ex. 23 at 78:13-15, 79:9-10, 101:20-22.) He noted that excessive use of force by police breaks down public trust in the Department. (*Id.* at 83:8-12.) He testified that "In my 35 years in law enforcement, I have never been trained to kick anyone that's in handcuffs. That's extremely dangerous." (*Id.* at 84:16-18.) Hansen described his reasoning for terminating Matejcek as follows:

[T]he fact that Officer Matejcek believed that he did nothing wrong, that this was justified. After reading the report and all the documents, I truly lost faith that in the future he was going to use appropriate force in other situations that my officers are involved in, and that -- and -- and -- and I couldn't risk him going out, again, couldn't risk the liability with the city at that point. And that's the reason why I came to the conclusion to terminate his employment.

Roose found that the Department had just cause for finding Matejcek had used excessive force but that it was an abuse of discretion to terminate Matejcek. (AR Vol. IV at 1126.) Roose found that the penalty should have been reduced to a one-week suspension without pay and that Matejcek should have been reinstated and reimbursed for the pay he lost in the interim, excepting the one week. (*Ibid.*)

On January 23, 2024, the City Manager issued his final written decision in the matter. (AR Vol. IV at 1127-1129.) His decision considered the arguments and evidence submitted at the hearing, as well as the Hearing Officer's written decision. (*Ibid.*) He determined that the evidence supported the Hearing Officer's finding that Matejcek used excessive force in violation of Department policy, however he overruled the Hearing Officer's determination as to discipline, instead finding that Hansen's decision to terminate Matejcek was not an abuse of discretion. (*Ibid.*)

Matejcek now seeks a writ of mandate overturning the City Manager's decision.

Legal Standard -- Writ of Administrative Mandate

Where a writ is issued challenging a final administrative order or decision made as the result of a proceeding in which a hearing is legally required, the inquiry shall seek to determine (1) whether the respondent proceeded without or in excess of jurisdiction, (2) whether there was a fair trial, and (3) whether there was any prejudicial abuse of discretion. (Code Civ. Proc., § 1094.5(a), (b).) "Abuse of discretion is established if the respondent has not proceeded in the manner required by law, the order or decision is not supported by the findings, or the findings are not supported by the evidence." (Code Civ. Proc., § 1094.5(b).)

Excessive Force Review

Where an administrative decision substantially affects a fundamental vested right, the trial court exercises its independent judgment in determining whether there is an abuse of discretion such that the findings are not supported by the weight of the evidence. (*Strumsky v. San Diego County Employees Ret. Ass'n* (1974) 11 Cal.3d 28, 32.)

The discipline and termination of a police officer implicates a vested property interest in continued employment and therefore warrants independent judgment review. (*Barber v. Long Beach Civil Service Com.* (1996) 45 Cal.App.4th 652, 658.; *Schmitt v. City of Rialto* (1985) 164 Cal.App.3d 494, 500; *McMillen v. Civil Service Com.* (1992) 6 Cal.App.4th 125, 129.)

Under the independent judgment standard, the court "not only examines the administrative record for errors of law but also exercises its independent judgment upon the evidence." (*Fukuda v. City of Angels* (1999) 20 Cal.4th 805, 816, fn. 8.) A trial court exercising its independent judgment "must afford a strong presumption of correctness concerning the administrative findings." (*Id.* at 817.) The party challenging the administrative findings is burdened with convincing the court that those findings are contrary to the weight of the evidence. (*Ibid.*)

"[T]he trial court has the power and responsibility to weigh the evidence at the administrative hearing and to make its own determination of the credibility of witnesses." (*Guymon v. Board of Accountancy* (1976) 55 Cal.App.3d 1010, 1016.)

Penalty Review

Although the court independently reviews the findings of misconduct, the selection of discipline is reviewed under a far more deferential standard. (*Griego v. City of Barstow* (2023) 87 Cal.App.5th 133, 138.) A court reviewing an administrative order in a mandamus proceeding will not disturb the penalty imposed by the administrative body unless there has been a manifest abuse of discretion. (*Skelly v. State Personnel Board* (1975) 15 Cal.3d 194, 217.)

[T]he overriding consideration in these cases is the extent to which the employee's conduct resulted in, or if repeated is likely to result in '[harm] to the public service.' Other relevant factors include the

circumstances surrounding the misconduct and the likelihood of its recurrence.

(*Skelly, supra*, 15 Cal.3d at 218 (citations omitted).)

A trial court may not substitute its discretion for that of the administrative agency concerning the degree of punishment imposed, and it must uphold the penalty if there is any reasonable basis to sustain it. (*Barber v. State Personnel Board* (1976) 18 Cal.3d 395, 404; *County of Los Angeles v. Civil Service Com. of County of Los Angeles* (2019) 40 Cal.App.5th 871, 877.) All reasonable doubts are resolved in favor of the administrative decision, and the court may not disturb the agency's choice of penalty absent an arbitrary, capricious, or patently abusive exercise of discretion by the administrative agency. (*County of Los Angeles v. Civil Service Com. of County of Los Angeles, supra*, 40 Cal.App.5th at 877.) "If reasonable minds may differ, there is no abuse of discretion." (*Griego, supra*, 87 Cal.App.5th at 139.)

The question of whether progressive discipline is appropriate in a given case is within the administrative body's discretion. (*Talmo v. Civil Serv. Com* (1991) 231 Cal.App.3d 210, 229-230.) "The public is entitled to protection from unprofessional employees whose conduct places people at risk of injury and the government at risk of incurring liability." (*Hankla v. Long Beach Civil Service Com.* (1995) 34 Cal.App.4th 1216, 1223.)

"[P]olice officers 'are the guardians of the peace and security of the community, and the efficiency of our whole system, designed for the purpose of maintaining law and order, depends upon the extent to which such officers perform their duties and are faithful to the trust reposed in them.'" (*Hankla, supra*, 34 Cal.App.4th at 1224 (citations omitted).)

Analysis

Excessive Force Finding

After exercising its independent judgment and according to the required presumption of correctness to the administrative findings, the Court concludes the weight of the evidence supports the City Manager's determination that Matejcek used excessive force in violation of Department policy. (*Fukuda, supra*, 20 Cal.4th at 817.)

The Department's policy on use of force holds that officers shall use only the amount of force that reasonably appears necessary given the facts and totality of the circumstances known to or perceived by the officer at the time of the event. (AR Vol. III at 0424 (BPD Policy Manual 300.3).) "The reasonableness of force will be judged from the perspective of a reasonable officer on the scene at the time of the incident." (*Ibid.*)

Matejcek contends that his kick was reasonable and not excessive "based upon his extensive personal experiences with Hurley and his knowledge of her history with law enforcement..." (Pet. Opening Brief at 6:1-4.) But here, there were two reasonable officers on-scene (Franson and Flynn), both of whom were operating under the same set of facts as Matejcek, and both immediately interpreted

Matejcek's kick as unreasonable. (SAR at 000016, 000019.)

Among the factors to be evaluated when considering whether a use of force was reasonable is the apparent immediacy and severity of the threat to officers or others (Penal Code § 835a), and the apparent need to immediately control the subject/resolve the situation. (AR Vol. III at 0424-0425 (BPD Policy Manual 300.3.2(a), (p)).)

Here, Flynn characterized the apparent threat at the time of Matejcek's kick as follows: "I didn't see Jill getting up as a major issue. I mean, we didn't want her to stand up, but I didn't feel like [it was an] immediate safety issue." (SAR at 000016.) Franson told the investigator that he "did not fear a threat near that level at that point at all." (*Id.* at 000019.) Both officers were familiar with Hurley, knew she was a drug user and often behaved erratically, or violently toward law enforcement. Flynn was even aware that she had spit on officers in the past. (*Id.* at 000014.) Both officers were still surprised at the level of force employed by Matejcek, and both were so disturbed that they confronted Matejcek about it at the scene. (SAR at 000016, 000019-000020.)

Also considered when determining if force used was reasonable is the conduct of the individual being confronted, as reasonably perceived by the officer at the time (Penal Code § 835a). (AR Vol. III at 0424-0425 (BPD Policy Manual 300.3.2(b)).) Here, Hurley was oscillating between calm and agitated, but of note is the fact that she made no attempts or threats to attack or spit on the officers even as she became verbally aggressive.

The policy on evaluating whether force is reasonable also contemplates the relative age, size, strength, skill level, injuries sustained, exhaustion or fatigue, and the ratio of officers to subjects. (AR Vol. III at 0424-0425 (BPD Policy Manual 300.3.2(c)) It further considers the degree to which the subject has been effectively restrained, his/her ability to resist despite being restrained, the proximity of weapons or dangerous improvised devices, and the effects of suspected drugs or alcohol. (AR Vol. III at 0424-0425 (BPD Policy Manual 300.3.2(e), (f), (h), (i)).)

Matejcek testified that size differential, large officer-to-subject ratio, and being handcuffed were all factors of no matter to Hurley in his past contacts with her where she was combative and attempting to flee. (AR Vol. III, Ex. 23 at 113:21-25, 114:1-11, 118:2-5.) However, in this instance Hurley, a 37-year-old woman who is 5'7" and approximately 145 pounds, was faced with *all* of those things and then some. (SAR at 000026.)

Hurley was not only handcuffed and smaller than the officers, but she was also backed up against a shed with three male officers in a triangular formation in front of her. She was in fact smaller than them, and according to all three officers' observations, she appeared drunk and, indeed, was visibly holding three cans of beer in her coat pockets. (AR Vol. III, Ex. 23 at 56:11-19, 132:4-6, 140:3-7; SAR at 000015.) Based on the totality of these factors, it is apparent that Hurley was at a distinct disadvantage in this interaction; the likelihood that she would overcome law enforcement in this situation was low, even with her history of flight and belligerent violence toward officers.

It is arguable that the beer cans could have been utilized as improvised weapons if she threw them,

but with her hands restrained behind her back with handcuffs, such an outcome was unlikely. Furthermore, if this were a real concern, officers would have confiscated the cans sooner. Instead, they allowed Hurley to sit on the curb talking to them for approximately eight minutes, even talking with her about the cans in her pockets, before finally searching her and taking the beer cans in the aftermath of the use of force. (AR Ex. 2 Franson BWC at 7:43-8:00.)

Other factors the policy considers in evaluating for reasonableness in use of force are the availability of other reasonable and feasible options, their possible effectiveness, and the training and experience of the officer. (Penal Code § 835a; AR Vol. III at 0424-0425 (BPD Policy Manual 300.3.2(j), (l)).)

Here, there were many other options available to Matejcek to achieve compliance from Hurley. As Flynn noted, he could have sat her back down or escorted her to a police vehicle. (SAR at 000016.) Franson said he would have either escorted her to a police vehicle for detention or pulled her back into a seated position by her arms. (*Id.* at 000019.) Nance, the BPD's defensive tactics instructor, having viewed the body worn camera video said that other reasonable options would have been use of a control hold to sit her back on the ground or merely maintaining distance and seeing what Hurley did. (*Id.* at 000038.) According to Nance, Matejcek was up to date with all required skills training. (*Id.* at 000035.)

The policy also contemplates the reasonableness of force in the context of the seriousness of the suspected offense. (AR Vol. III at 0424-0425 (BPD Policy Manual 300.3.2(k)).)

Here, the primary offense with which officers were considering charging Hurley was a Penal Code § 647(f) (Public Intoxication.) While Hurley's behavior was erratic, her offense was not so serious as to require the kind of force used here to contain her, even if assuming *arguendo* she were attempting to flee.

The policy also weighs the risk and reasonably foreseeable consequences of escape, prior contacts with the subject or awareness of any propensity for violence, and the potential for injury to officers, suspects, bystanders and others. (AR Vol. III at 0424-0425 (BPD Policy Manual 300.3.2(m), (o), (r)).) Matejcek relies heavily on these factors in his argument that the kick was justified force. (Pet. Opening Brief at 7:20-24.) His expert testified as follows:

...I think primarily, in terms of looking at the force and what to balance that against, the fear of being spit upon is -- is the key factor; right? If there were no fear of that, and it was simply to say, "Well, I didn't want her to run away," if that was merely to prevent flight, then I'd probably be criticizing it.

But Matejcek's assertion that he kicked Hurley because it was the safest way to control her without being spit on is belied by his own actions. Matejcek wrote in his police report that he was concerned that Hurley might spit on him because of her history of spitting at officers, he told the investigator the same, and he testified to it at the Administrative Hearing. (AR Vol. 1 at 0015; SAR 000031; AR Vol. III, Ex. 23 at 136:7-25.) However, no evidence was presented that he sought to communicate his

concerns to Franson or Flynn on the scene, and this incident unfolded over the course of roughly eight minutes, giving him adequate time to do so. Matejcek was also within arm's reach of Hurley searching her pockets for several minutes after the kick and he made no attempt to shield himself from any possible spit from Hurley.

Furthermore, and perhaps most striking, no attempt was made to get Hurley restrained with a spit hood before or after the kick, despite that, again, roughly eight minutes elapsed from the time Hurley was drawn out from the shed to Matejcek kicking her. Matejcek testified at the Administrative Hearing that he considered putting a spit hood on Hurley but did not have one. (AR Vol. III, Ex. 23 at 143:5-7.) However, all Department vehicles are stocked with spit hoods. (AR Vol. II, Ex. 17.) There were three Department vehicles on scene, including Matejcek's own, during the subject incident, but there is no indication Matejcek asked either of his colleagues for their vehicle's spit hood. (*Id.* at 124:7-15.)

The only other reason Matejcek gave for employing the force of a kick in this instance was as follows: "By standing up, Hurley posed a risk of running away or being able to slip her handcuffed arms from behind her and would be able to resist arrest, if able to stand all the way up." (AR Vol. I at 0015; AR Vol. III, Ex. 23 at 134:23-25, 135:1-3.) His own use of force expert testified that in the absence of a genuine fear of being spit on, he, too, would have been critical of the kick employed by Matejcek.

The reach of spittle is greater than the reach of, obviously, somebody's arms when they're handcuffed. And so -- so that -- that was a significant fact. You know, the countering fact, of course, is she is handcuffed, and so that's a significant fact as well. But in balancing it all, that fear of being spit upon, and the fact that the handcuffs really don't prevent that, that weighed heavily in -- in my decision to -
- to say that this kick probably falls within the range of reasonableness that the industry looks for.

(AR Vol. III, Ex. 23 at 181:21-25, 182:1-6.)

Even if, assuming *arguendo*, there was a genuine concern based on Hurley's past actions, as Nance testified, an officer is not permitted to act preemptively with force when the current circumstances do not warrant it.

You can't just approach a suspect and think, "Last time I contacted this suspect, he ran from me, so this time as soon as I see him, I've got to go tackle him." You have to gauge your response based on the totality of the circumstances, and certainly prior history with the suspect could be one factor that could go into your overall decision-making, but you can't act preemptively to use force on a suspect just because they have acted a certain way in the past.

Here, Hurley had not threatened to spit and had made no move to do so. She attempted to stand but

she made no move to flee, lunge at officers, fight, or spit. The totality of circumstances on the early morning of April 23, 2022, were such that Hurley did not present a spitting threat based on her actions during that encounter. This, too, is supported by the fact that Matejcek did not feel compelled to ensure his colleagues were aware she was a spitting risk (although Flynn in fact was already aware) or seek out a spit hood. (SAR at 000014.) Furthermore, she was several feet away from the three officers (until Matejcek approached for the kick).

Given Hurley's handcuffs, if she had escaped, she would not have gone far before one of the officers caught up with her, thus the risk to any hypothetical bystanders was unlikely, particularly given the time of day (5:30 a.m.) and the location (an empty Home Depot parking lot).

Even if, assuming *arguendo*, she had gotten away, the consequences would have been *de minimis*. She is a transient woman who was being contacted for creating a disturbance by yelling. She might have been a danger to herself given the extent of her apparent intoxication, however the violence described by officers Flynn, Franson, and Matejcek was tethered to police, not bystanders. Furthermore, there is no indication Hurley was attempting to flee; when she rose, she moved neither toward officers to attack nor away from them to escape.

Other factors the policy weighs in evaluating the reasonableness of force are whether the person appears to be resisting, attempting to evade arrest by flight, or is attacking the officer, or whether the conduct of the individual being confronted no longer reasonably appears to pose an imminent threat to the officer or others. (AR Vol. III at 0424-0425 (BPD Policy Manual 300.3.2 (n), (q)).)

Here, by standing, Hurley could arguably be deemed resisting arrest, but she was by no means attacking anyone or attempting to evade arrest by flight. It is important to note that the extent of her resistance appears to be standing up. She makes no overt action toward attempting to flee or attempting to lunge toward any of the officers. She simply rises to her feet. Matejcek argues that Hurley's standing was a threat because of her history of belligerent violence, flight, and spitting, but in deciding to use force an officer must evaluate based on the totality of the circumstances, and Hurley's behavior that morning had not escalated to a level that warranted violence to achieve compliance. Both Flynn and Franson noted that Hurley did not represent an imminent threat in their views. (SAR at 000016, 000019.)

In the Court's independent judgment, it concurs with the City Manager's finding that Matejcek exercised excessive force in violation of the Department's policy.

Termination Was Not an Abuse of Discretion

Petitioner contends that even if his conduct violated Department policy, the City Manager abused his discretion by rejecting the Hearing Officer's recommended suspension and upholding the termination.

Although the Court independently reviews the finding of misconduct, the City Manager's selection of discipline is reviewed under a highly deferential abuse-of-discretion standard. (*Griego, supra*, 87 Cal.App.5th at 138.) The issue is not whether a lesser penalty could have been imposed, or whether

the Court would have imposed the same penalty, but whether termination was so disproportionate to the offense as to exceed the bounds of reason. (*Barber, supra*, 18 Cal.3d at 404; *County of Los Angeles v. Civil Service Com. of County of Los Angeles, supra*, 40 Cal.App.5th at 877.) A trial court may not substitute its discretion for that of the administrative agency. (*Ibid.*)

The City Manager's written decision reflects a reasoned determination that Petitioner's conduct — using force against a restrained, vulnerable individual — was extremely serious, implicated public safety and community trust, and justified the most severe level of discipline. He highlighted Hansen's testimony of his concerns that this excessive force was an error of judgment for which Matejcek showed no acknowledgment of wrongdoing. The City Manager also noted that police officers are held to a higher standard than civilians. (AR Vol. IV at 1128-1129.) The poor judgment shown by Matejcek in this case suggests that he might be more likely to use excessive force in the future.

Ultimately, the City Manager's decision was not arbitrary, capricious, or patently abusive, and even where reasonable minds may differ, there is no abuse of discretion. (*Griego, supra*, 87 Cal.App.5th at 139.)

Conclusion

For the foregoing reasons, the Court, exercising its independent judgment, finds that the City Manager's finding of excessive force is supported by the weight of the evidence. The Court further concludes that the City Manager did not abuse his discretion in determining that termination, rather than a lesser penalty, was warranted. Because the City Manager articulated rational, public-safety-based reasons for the discipline imposed and acted within the scope of his authority, the petition for writ of administrative mandate is **denied**.

^[1] Matejcek did not activate his body worn camera during this incident; however, this oversight is not at issue in the instant case.